



**BRECKSVILLE-BROADVIEW HTS.  
CITY SCHOOL DISTRICT**

"Where Decisions are Made"

|              |                                          |
|--------------|------------------------------------------|
| Book         | Policy Manual                            |
| Section      | 02/27/20                                 |
| Title        | Copy of EMPLOYMENT OF PROFESSIONAL STAFF |
| Code         | po3120                                   |
| Status       | First Reading                            |
| Adopted      | July 23, 2007                            |
| Last Revised | December 15, 2008                        |

### **3120 - EMPLOYMENT OF PROFESSIONAL STAFF**

The Board of Education recognizes that it is vital to the successful operation of the District that positions created by the Board be filled with qualified and competent personnel.

The Board shall approve the employment, and also, when not covered by the terms of a negotiated, collectively-bargained agreement, fix the compensation and establish the term of employment for each professional staff member employed by the Board.

Teachers shall be considered members of the professional staff.

Such approval shall be given only to those candidates for employment recommended by the Superintendent.

Relatives of Board members may be employed by the Board, provided a member of the Board does not participate in any way in the discussion or vote on the employment when a conflict of interest is involved.

Relatives of staff members may be employed by the Board, provided the staff member being employed is not placed in a position in which s/he is supervised directly by the relative staff member.

Applications for employment will not be accepted from any current Board member. If a Board member wishes to apply for a position, his/her resignation must be accepted by the Board at least one (1) year prior to submitting an application and circumstances must be such as to avoid the Board member's apparent use of his/her authority or influence as a Board member to secure the employment position.

Any professional staff member's intentional misstatement of fact material to qualifications for employment or the determination of salary shall be considered by this Board to constitute grounds for dismissal.

The employment of professional staff members prior to approval by the Board is authorized when their employment is required to maintain continuity in the educational program. Employment shall be recommended to the Board at the next regular meeting.

No candidate for employment as a professional staff member shall receive recommendation for such employment without having proffered visual evidence of proper licensing or that application for such licensing is in process. Said licensing shall meet the minimum requirements of State law for the position for which s/he is being recommended.

Professional staff must complete a DMA form with no positive indications that material assistance has been provided to a terrorist organization before working in the District (see Policy 8120).

Professional staff must also pass a background check performed by the Bureau of Criminal Identification and Investigation and the Federal Bureau of Investigation (see Policy 3121).

The Superintendent shall prepare administrative guidelines for the recruitment and selection of all professional staff.

### **REQUIREMENTS FOR TEACHERS**

Teachers must hold a valid license issued by the State to teach in all areas of assignment. who instruct in core subject areas must be properly certified/licensed as required by the Elementary and Secondary Education Act, as amended ("ESEA"), and State law. A properly licensed/certified teacher is defined as a teacher who has successfully completed all requirements for certification/licensure and holds a license applicable to all grade levels and subject areas in which the teacher provides instruction and the students to whom the teacher provides the instruction. "Core subject areas" include reading, English Language Arts, Mathematics, Science, Social Studies, Foreign Language, and Fine Arts.

The following teaching license types may be considered eligible for proper certification/licensure in a core subject area:

- A. Resident Educator/Alternative Resident Educator License
- B. Professional Educator License
- C. Senior Professional Educator License
- D. Lead Professional Educator License
- E. One-Year Out-of-State License
- F. Supplemental License
- G. Visiting International Teacher License

The Superintendent shall report State certification and licensure status for every teacher at least annually in accordance with State and Federal law. At the start of the school year, the Superintendent shall notify parents/guardians of each student enrolled in the District that they may request information about the professional qualifications of each classroom teacher who provides instruction to the student. Upon request of the parent/guardian, the District will provide information about each teacher assigned to provide instruction to their student(s) in a timely manner. The information will include whether the teacher has satisfied all requirements for certification/licensure or whether the teacher provides instruction under a waiver.

~~All teachers shall be "highly qualified."~~

~~"Highly Qualified" means:~~

- A. ~~Full State certification as a teacher (including an alternative educator license) or passed State teacher licensing exam and holds current license to teach; certification or license requirements may not be waived on a temporary basis~~
- B. ~~For elementary teachers new to the profession, this also requires:~~
  - 1. ~~at least a bachelor's degree~~
  - 2. ~~passing a rigorous State test on subject knowledge and teaching skills in reading, writing, math, and other areas of elementary curriculum (State certification test may suffice)~~
- C. ~~For secondary or middle school teachers new to the profession this also requires:~~
  - 1. ~~at least a bachelor's degree, and~~
  - 2. ~~passing a rigorous State test in each of the subject areas s/he will teach (State certification test may suffice), or~~
  - 3. ~~for each academic subject taught, having an academic major, course work equivalent to an undergraduate major, a graduate degree, or advanced certification or credentialing~~
- D. ~~For elementary, middle, or secondary school teachers with prior experience, this also requires;~~
  - 1. ~~at least a bachelor's degree, and~~
  - 2. ~~meets standards for new teachers (above), or~~
  - 3. ~~demonstrates competence in all academic subjects s/he teaches based on a uniform State standard of evaluation (standard for academic subject matter and teaching skills set by the State)~~

### **Confirmation of Licensure**

As a prerequisite to employee pay, the Superintendent must first issue to the Treasurer a written statement that confirms each teacher and/or professional employee has filed with the Superintendent both a copy of all valid licenses as well as copies of any reports required by the State Board or this Board to demonstrate his/her qualification to teach in all assigned subject and grade levels of instruction and/or a professional educator position. No professional staff member employed in a position for which licensure is required may be paid until evidence of such appropriate

licensure for the subject area, grade level, or position, etc. has been received by the Superintendent and transmitted to the Treasurer.

**Legal**

R.C. 2909.34, 2921.01, 2921.42, 3319.02, 3319.07, 3319.11

R.C. 3319.23 - .282, 3319.283, 3319.301, 3319.39

20 U.S.C. 6319

20 U.S.C. 7801

